This grant of relief was inappropriate given the absence of any postsentencing developments, and the Court needed to go no further to affirm the decision below. Unfortunately, bad facts often make bad law, and so they did today. Correctly perceiving a problem with the District Court's grant of relief, the majority responds with a rule that goes far beyond both what is needed to resolve this case and, worse, what the text and relevant precedents can bear. Because I do not agree with the majority's reasoning in support of its decision to affirm the decision below, I concur only in the judgment of the Court.

JUSTICE JACKSON, dissenting.

Section 3582(c)(1)(A) of Title 18 of the U. S. Code—known as the compassionate-release statute—authorizes district courts to reduce federal prison sentences under specified circumstances. This case is about the scope of that authority. By its terms, the compassionate-release statute is flexible, permitting sentence reductions for "extraordinary and compelling reasons." 18 U. S. C. § 3582(c)(1)(A)(i). The breadth of this language is no accident: It reflects Congress's intent to preserve some of the traditional discretion afforded to district courts to ensure just treatment of defendants in criminal cases.

Page Proof Pending Publication

Today, the Court arbitrarily restricts that discretion by grafting an atextual rule onto § 3582(c)(1)(A). It holds that a district court may not base its "extraordinary and compelling" findings on any reason that "collaterally attacks the validity" of the prisoner's conviction. *Ante*, at 415. Such "attacks," the majority says, must be brought through motions for habeas relief under 28 U. S. C. § 2255. *Ibid.* But this restriction comes of out nowhere—it finds no support in the statute's text or history, nor can it be justified by our precedents.

---

relief on grounds unrelated to the question that this Court granted certiorari to review, 104 F. 4th 420, 428–429 (2024).

What, then, explains the new categorical rule that the Court adopts today? The answer appears to be the majority's intuition that the District Court's grant of petitioner Joe Fernandez's compassionate-release motion qualifies as an abuse of discretion under the circumstances presented here. That may well be true—but not because of an implicit, habeas-based limitation on the reach of § 3582(c)(1)(A).

Because the Court of Appeals erroneously relied on such a habeas-based rule in reversing the District Court's grant of compassionate release, and the majority now endorses that approach, I respectfully dissent. I would vacate, rather than affirm, the decision of the Court of Appeals.

I

The majority holds that the District Court erred in granting Fernandez's compassionate-release motion because § 3582(c)(1)(A) contains an implicit habeas-based limitation: Sentence reductions that derive from purported "[c]ollateral attacks on federal convictions" are not authorized. *Ante*, at 419. It is not clear whether the majority believes, on the one hand, that conviction-related concerns can never be sufficiently "extraordinary and compelling" or, on the other, that even if there are "extraordinary and compelling" reasons to doubt the defendant's conviction, a sentence reduction is nevertheless unavailable.

Page Proof Pending Publication

What *is* evident is that, in devising this new rule, the majority devotes most of its analysis to describing the contours of habeas relief under § 2255 and gives short shrift to the text and history of § 3582(c)(1)(A). Had the majority focused instead on the statute actually before it, it would have seen that the compassionate-release provision operates as an independent stop-gap measure, designed to preserve a district court's discretion to reduce a criminal sentence when "extraordinary and compelling" circumstances warrant that result. And when § 3582(c)(1)(A) is thus properly understood, it is clear that the existence of habeas review has no

bearing whatsoever on whether a defendant can seek or obtain compassionate release.

A

Start with the words Congress used in § 3582(c)(1)(A)—they provide the most obvious strike against the majority's newfound rule. Section 3582(c)(1)(A)'s text, while authorizing a sentence reduction, does not refer to § 2255 or habeas review—in any way, shape, or form. Of course, if Congress had intended § 2255 to limit the availability of the compassionate-release remedy, it could easily have said so. This Court has often taken the lack of a cross-reference to mean that two distinct statutory provisions bear no relation to one another. See, *e. g.*, *Pugin* v. *Garland*, 599 U. S. 600, 608 (2023); *Azar* v. *Allina Health Services*, 587 U. S. 566, 576–577 (2019).

Not only is there no explicit basis for the majority's habeas-based rule, there is also no implicit one. Section 3582(c)(1)(A) is a straightforward grant of discretion: It vests district courts with authority to reduce a prisoner's sentence for "extraordinary and compelling reasons." The terms "extraordinary" and "compelling" are commonly understood to relate to a narrow and specific set of circumstances defined by degree, not type. See *Rutherford* v. *United States*, 608 U. S. 454, 480 (2026) (SOTOMAYOR, J., dissenting). As the majority acknowledges, "'[e]xtraordinary' means 'most unusual,' 'far from common,' and 'having little or no precedent,'" while "'compelling' means 'tending to convince or convert by or as if by forcefulness of evidence.'" *Ante*, at 423 (quoting Webster's Third New International Dictionary 463, 807 (1976)). Neither definition implies the exclusion of any *kind* of consideration from a district court's sentence-reduction analysis. Rather, they suggest that any factor can be the basis for compassionate release, so long as it is both sufficiently unusual and sufficiently forceful. See *Romag Fasteners, Inc.* v. *Fossil Group, Inc.*, 590 U. S. 212,

Page Proof Pending Publication

215 (2020) (observing that this Court does not "usually read into statutes words that aren't there").

The statutory context confirms the absence of any type-based restriction on the sentence-modification authority § 3582(c)(1)(A) conveys, much less the majority's preferred habeas limit. With full awareness of § 2255, Congress placed only two textual limitations on what constitutes an "extraordinary and compelling reason" to modify a defendant's sentence. First, the resulting sentence reduction must be "consistent" with the Sentencing Commission's policy statements. 18 U. S. C. § 3582(c)(1)(A). Second, "[r]ehabilitation of the defendant alone shall not be considered an extraordinary and compelling reason" for a sentence reduction. 28 U. S. C. § 994(t). Far from connoting an additional habeas-based constraint, Congress's express inclusion of these two restrictions on a district court's "extraordinary and compelling" findings "'implies the exclusion of othe[r]'" such limitations. *Jennings* v. *Rodriguez*, 583 U. S. 281, 300 (2018) (quoting A. Scalia & B. Garner, Reading Law 107 (2012)).

Page Proof Pending Publication

The majority offers little by way of a text-based comeback. Focusing on the word "compelling," the majority observes that what "is compelling in one context is not necessarily so in another"; for example, a 25th wedding anniversary may be a "compelling" reason to shorten a business trip but not a prison sentence. *Ante*, at 423. While obviously true, that observation tells us nothing relevant. All agree that personal considerations (*e. g.*, illness and family hardship) might warrant a sentence reduction under § 3582(c)(1)(A), see *ante*, at 423–425, yet those considerations, too, are more or less "compelling" under various circumstances. Moreover, as explained in Part II–A, *infra*, Fernandez's claim of actual innocence, if meritorious, would be a compelling reason to reduce his sentence. At the time the District Court considered his § 3582(c)(1)(A) motion, Fernandez had already served 11 years in federal prison for a crime he says he did not commit.

On the "extraordinary and compelling reasons" scale, his innocence claim is lightyears away from reducing a sentence to facilitate celebration of a wedding anniversary.

B

The text alone suffices to dispel the habeas-related limitation myth the majority adopts today. But, as is often true of statutes, it is not possible to fully understand the compassionate-release provision without appreciating its statutory and legislative history. See R. Katzmann, Judging Statutes 31 (2014) ("The task of the judge is to make sense of legislation in a way that is faithful to Congress's purposes"). The historical context under which § 3582(c)(1)(A) emerged and developed is "the water in which [the text] swim[s]." *United States* v. *Hansen*, 599 U. S. 762, 775 (2023). Notably absent from this history is any indication that Congress understood § 2255 to implicitly limit the scope of compassionate release, either when it first enacted § 3582(c)(1)(A) in 1984 or when it amended the provision in 2018.

Page Proof Pending Publication

1

Before 1984, "the Federal Government employed in criminal cases a system of indeterminate sentencing." *Mistretta* v. *United States*, 488 U. S. 361, 363 (1989). Though "[s]tatutes specified the penalties for crimes," they "nearly always gave the sentencing judge wide discretion to decide whether the offender should be incarcerated and for how long" or "whether restraint, such as probation, should be imposed instead of imprisonment or fine." *Ibid.* The result: "great variation among sentences imposed by different judges upon similarly situated offenders" and "uncertainty as to the time the offender would spend in prison." *Id.*, at 366.

Congress set out to alleviate those problems with the Sentencing Reform Act of 1984. See 98 Stat. 1987; see also S. Rep. No. 98–225, p. 65 (1983) ("The shameful disparity in criminal sentences is a major flaw in the existing criminal

justice system, and makes it clear that the system is ripe for reform"). The Act's most prominent reform was the creation of the U. S. Sentencing Commission, which Congress tasked with promulgating a new, determinate system of Sentencing Guidelines. See § 217(a), 98 Stat. 2017 (codified at 28 U. S. C. § 991). Initially, the Guidelines were "binding on the courts." See *Mistretta*, 488 U. S., at 367–368. Judges had some discretion to depart from an applicable Guidelines range, but only after "find[ing] an aggravating or mitigating factor present that the Commission did not adequately consider." *Id.*, at 367.[1]

By design, the new Guidelines-based system left little room for judges to exercise discretion when determining the applicable sentence. See S. Rep. No. 98–225, at 38 (describing the new system as aimed at eliminating "the unfettered discretion the law confers" on sentencing judges). At the same time, Congress recognized that removing all discretion would result in unfairly harsh sentences for some prisoners. Indeed, despite the uniformity aim of the Guidelines, lawmakers acknowledged the possibility of an "exceptional situation where someone obviously slips through the cracks and gets a much longer sentence." Hearings on Revision of the Federal Criminal Code before the Subcommittee on Criminal Justice of the House Committee on the Judiciary, 96th Cong., 1st Sess., pt. 3, pp. 1842–1843 (1979) (Code Revision Hearings) (statement of Rep. Lungren). Federal judges similarly warned of "those occasional cases which cry out for some sort of revision, even though the sentence on that particular

Page Proof Pending Publication

[1] Today, of course, the Guidelines are no longer binding—though district courts must still "consult" and "take them into account when sentencing." *United States* v. *Booker*, 543 U. S. 220, 264 (2005). The Guidelines thus "remain a basis for almost all federal sentences." *Hughes* v. *United States*, 584 U. S. 675, 688 (2018); see *Peugh* v. *United States*, 569 U. S. 530, 543 (2013) (observing that, "[e]ven after *Booker* rendered the Sentencing Guidelines advisory," courts overwhelmingly "imposed either within-Guidelines sentences or sentences that depart downward from the Guidelines on the Government's motion").

offender has been imposed by a perfectly conscientious sentencing court . . . and based upon facts and circumstances which were a matter of record." See *id.*, at 1902–1903 (statement of Hon. Harold R. Tyler).

This problem was what Congress set out to address when it created various "'safety valve[s]'" on the back end of the sentencing process, allowing district courts to exercise their discretion to reduce sentences in "unusual case[s]." S. Rep. No. 98–225, at 121. The compassionate-release provision was one of them. As enacted in 1984, § 3582(c)(1)(A) permitted the Director of the Bureau of Prisons (BOP) to petition a sentencing court for a reduction in a prisoner's sentence. § 212(a)(2), 98 Stat. 1998–1999. And it authorized a court to grant such a petition if, "'after considering the factors set forth in section 3553(a),'" the court found "'that extraordinary and compelling reasons'" justified the reduction and that such a reduction was "'consistent with applicable policy statements issued by the Sentencing Commission.'" *Ibid.*

Page Proof Pending Publication

Significantly for present purposes, Congress was well aware of § 2255 in 1984. See, *e. g.*, S. Rep. No. 98–225, at 234 (cross-referencing § 2255 in explaining a different provision of the Sentencing Reform Act). But it never suggested that § 3582(c)(1)(A) and § 2255 were mutually exclusive, much less that habeas was the sole means of obtaining postsentencing relief from an unjust conviction. Nor did Congress indicate that the availability of compassionate release hinged on the unavailability of habeas review. Instead, it was clear from the start that compassionate release was *a distinct vehicle* for addressing potential inequities with respect to a defendant's sentence: one specifically designed to allow for the flexible consideration of "extraordinary and compelling" circumstances notwithstanding the restrictions that otherwise made the sentencing system less discretionary. *Id.*, at 121 (recognizing the "value" of "assur[ing] the availability of specific review and reduction of a term of imprisonment for 'extraordinary and compelling reasons'").

But, as it turned out, the compassionate-release safety valve rarely opened in the decades following § 3582(c)(1)(A)'s enactment. Between 2006 and 2011, an average of "only 24 inmates" were "released each year through the BOP's compassionate release program." Dept. of Justice, Office of Inspector General, The Federal Bureau of Prisons' Compassionate Release Program 1 (Apr. 2013). Over time, it became clear that BOP was drastically underutilizing its compassionate-release power, "resulting in inmates who may [have been] eligible candidates for release not being considered." *Id.*, at 11.

Of particular issue was the BOP's exceedingly narrow interpretation of the statutory phrase "extraordinary and compelling," which its Central Office staff had interpreted as referring only to "terminally ill medical conditions with a life expectancy of 1 year or less or those who are incapacitated and unable to perform their daily activities—criteria that [were] found nowhere in the relevant statute." *Id.*, at 13. And though BOP regulations technically "permit[ted] nonmedical circumstances to be considered as a basis for compassionate release," the agency "routinely reject[ed] such requests." *Id.*, at ii.

Page Proof Pending Publication

Congress took notice. In 2017, a bipartisan group of Senators wrote to the Department of Justice and expressed "dee[p] concer[n] that BOP [was] not fulfilling its role in the compassionate release process." Letter from 12 U. S. Senators to J. Rod Rosenstein, Deputy Attorney General, & Dr. T. Kane, Acting BOP Director 3 (Aug. 3, 2017) (Letter from 12 U. S. Senators). Several of those Senators worked together later that year to introduce a "bipartisan sentencing and prison reform bill" known as the First Step Act, which passed the following year. 164 Cong. Rec. S7645 (Dec. 17, 2018) (statement of Sen. Durbin); see 132 Stat. 5194. In a section entitled "Increasing the Use and Transparency of Compassionate Release," the Act amended the

compassionate-release provision to allow prisoners to file their own motions for sentence reductions, without approval from the BOP. § 603(b), 132 Stat. 5239.

This historical account can be summarized succinctly. Congress crafted § 3582(c)(1)(A) to operate as a safety valve that would ameliorate the harshness of the new determinate scheme for sentencing. S. Rep. No. 98–225, at 121. It was not linked to, or limited by, the existence of habeas review in any respect. And that made perfect sense given the specific role Congress envisioned for compassionate release: allowing a discretionary sentence modification for a prisoner who presents "extraordinary and compelling" grounds for mercy.

II

A

The majority nevertheless insists on categorically excluding one potential ground for compassionate release—any consideration that supposedly "attacks the validity of [a] conviction" or sentence. *Ante*, at 415. One glaring flaw with this analysis is the majority's failure to clearly establish *when* this forbidden circumstance arises; that is, what, exactly, does it mean for a prisoner to collaterally attack his conviction in the context of a compassionate-release motion? It is not hard to see how one man's collateral attack is another man's compelling bid for compassion.

Consider, for example, an actually innocent defendant—let's call him Paul. Paul is serving a life sentence and, for reasons beyond his control, failed to discover indisputably exonerating evidence during his trial. But Paul cannot point to any way in which his conviction or sentence violates the Constitution or some other provision of the U. S. Code. He does not allege, for instance, that his counsel was ineffective or that the prosecution withheld exculpatory evidence. Habeas thus provides no avenue for relief. See 28 U. S. C. § 2255(a) (authorizing relief for a defendant whose "sentence

was imposed in violation of the Constitution or laws of the United States").

An innocent man stuck in prison for life: Can there be a more "extraordinary and compelling" reason to shorten a prison sentence than that? And is there any logical reason to believe that Congress meant to prohibit Paul from petitioning the court for such relief under § 3582(c)(1)(A)? Quite to the contrary, this manifest injustice would seem to be the quintessential situation in which the compassionate-release safety valve would apply. See Code Revision Hearings, at 1842–1843 (statement of Rep. Lungren) (expressing concern about federal prisoners "slip[ping] through the cracks"). But the majority's rule would forbid it, simply and solely because § 2255 exists.

Of course, this is not to say that every assertion of innocence will necessarily qualify as an "extraordinary" or "compelling" basis for a sentence reduction. For instance, a claim of innocence that simply rehashes the evidence presented at trial is unlikely to suffice. The concern that Fernandez is making such an unjustified innocence claim seems to be what drives much of the majority's analysis today. See *ante*, at 429–430 ("No court—not even the District Court that reduced his sentence—concluded that Fernandez was actually innocent. His evidentiary challenges were repeatedly rejected"); see also *ante*, at 432 (SOTOMAYOR, J., concurring in judgment) ("Petitioner Joe Fernandez has been litigating the issues at the core of his § 3582(c)(1)(A) motion since his trial"). But the Court overcorrects for this concern and, in the process, adopts an atextual rule that categorically forbids *any* consideration of potential innocence whatsoever—no matter how extraordinary or compelling—either on its own or as part of a mix of other considerations. That result certainly does not follow from the text.

Nor would allowing consideration of potential innocence permit federal prisoners to circumvent § 2255's limitations on habeas relief, as the majority claims. See *ante*, at 420–423.

Page Proof Pending Publication

That is because the habeas and compassionate-release provisions operate differently. To be sure, both statutes authorize the release of federal prisoners. But, where the statutory prerequisites are met, relief under § 3582(c)(1)(A) is discretionary, whereas relief under § 2255 is mandatory: The former provides that "the court . . . *may* reduce the term of imprisonment," while the latter states that "the court *shall* vacate and set the judgment aside." (Emphasis added.) Section 3582(c)(1)(A) thus provides no guaranteed end-run around § 2255's limitations on relief.

Section 3582(c)(1)(A) and § 2255 also differ in the nature of the relief that they provide. Most notably, the grant of compassionate release—even on actual-innocence grounds—does nothing to invalidate the underlying conviction. A neighboring subsection explicitly clarifies that compassionate release does not disturb the finality of the "judgment of conviction." § 3582(b). Not so with habeas—when a § 2255 applicant successfully challenges the validity of his conviction, the result is vacatur. See § 2255(b) ("If the court finds . . . that there has been such a denial or infringement of the constitutional rights of the prisoner as to render the judgment vulnerable to collateral attack, *the court shall vacate and set the judgment aside*" (emphasis added)).

Page Proof Pending Publication

Put differently, habeas nullifies a conviction as a matter of law, while compassionate release shortens a sentence as a matter of grace. The majority does not adequately explain why these two forms of relief—which operate differently, exist for different reasons, and ultimately yield different results—must necessarily work to the exclusion of each other.

B

Despite these crucial observations, the majority forges ahead, insisting on grafting a habeas-based restriction onto the compassionate-release remedy. It gets there in two ways: first, by overstating the significance of the BOP's role in order to bolster the conclusion that "personal circum-

stances" are the only cognizable factors under § 3582(c)(1)(A); and, second, by overreading two of our prior habeas-channeling cases—*Preiser* v. *Rodriguez*, 411 U. S. 475 (1973), and *Gonzalez* v. *Crosby*, 545 U. S. 524 (2005). Neither move is availing.

1

Highlighting the BOP's role in compassionate release and the fact that prison officials can observe things like "advanced age," "safety risk," and "illness," the majority contends that Congress's centering of the BOP "reflects the statute's focus on a defendant's personal circumstances." *Ante*, at 425. But the majority cannot deny that Congress amended § 3582(c)(1)(A) due to its concern that the BOP was mismanaging compassionate-release motions. See *supra*, at 440–441. The majority's reliance on the BOP's "institutional expertise," *ante*, at 425, to interpret a statutory amendment aimed at *reducing* the BOP's involvement is, at best, counterintuitive.

Page Proof Pending Publication

Recall that Congress amended the compassionate-release provision as part of the First Step Act—legislation that was broadly aimed at providing district courts with discretion to alleviate what many had come to believe were unduly harsh criminal sentences. See *Concepcion* v. *United States*, 597 U. S. 481, 486 (2022). Pointing back to the original, pre-First Step Act scope of § 3582(c)(1)(A) does not account for Congress's subsequent conclusion that BOP was applying the compassionate-release provision too narrowly. And when it invited district courts to consider § 3582(c)(1)(A) motions filed directly by defendants, Congress did not say, or even suggest, that a sentence reduction under this provision is only available based on the kinds of factors BOP might raise.

Fernandez's concession that the First Step Act "did not change the substantive standard applicable to" § 3582(c)(1)(A), *ante*, at 425 (citing Tr. of Oral Arg. 9–12), is not to the contrary. That observation merely states the obvious: that the meaning of "extraordinary and compelling reasons"

has always been expansive, leading Congress to conclude that the BOP had been misinterpreting "extraordinary and compelling" all along. See Letter from 12 U. S. Senators 3 (expressing "dee[p] concer[n]" about the BOP's underutilization of compassionate release); § 603(b), 132 Stat. 5239 (titling the First Step Act's amendment to § 3582(c)(1)(A) "Increasing the Use and Transparency of Compassionate Release"). Fernandez seeks to redeem the statute's meaning, not to change it.

The majority also tells only half the story when it declares that, "[f]or decades, the Sentencing Commission has tied the availability of compassionate release to a defendant's personal circumstances." *Ante*, at 426. To be sure, the agency has always identified certain personal characteristics (such as "'a serious physical or medical condition'"). But it has also included a catchall category for any circumstances determined to be "'extraordinary and compelling.'" United States Sentencing Commission, Guidelines Manual Supp. to App. C, Amdt. 683 (Nov. 2008) (USSG) (effective Nov. 2006); *id.*, Amdt. 698 (effective Nov. 2007); *id.*, Amdt. 799 (Nov. 2016); see USSG § 1B1.13(b)(5) (Nov. 2025) (providing that "any other circumstance or combination of circumstances that . . . are *similar in gravity*" to the specifically enumerated ones may constitute "extraordinary and compelling" reasons for a sentence reduction (emphasis added)).

Page Proof Pending Publication

The takeaway from all this is not, as the majority suggests, that compassionate release has always been understood to be limited to certain *kinds* of factors (*i. e.*, personal circumstances). See *ante*, at 424–425. Rather, the statutory and regulatory history establishes that § 3582(c)(1)(A) provides for flexibility and, with one exception, imposes no substantive categorical restrictions on what may constitute a basis for compassionate release. See § 3582(c)(1)(A); see also § 994(t) (noting that "[r]ehabilitation" is not on its own a statutorily recognized reason for compassionate release). That

view tracks with the language of § 3582(c)(1)(A)—which vests district courts with broad discretion to determine whether "extraordinary and compelling reasons" justify a sentence reduction—as well as the unmistakable safety-valve aims of the statute.

2

The majority's reliance on the habeas-channeling analysis in *Preiser* and *Gonzalez* is equally misplaced.

Start with *Preiser*. In that case, we considered a 42 U. S. C. § 1983 claim brought by state prisoners who asserted the unconstitutional deprivation of "good-conduct-time credits" that would have shortened their sentences. 411 U. S., at 476. The prisoners sought "injunctive relief to compel restoration of the credits, which in each case would result in their immediate release from confinement." *Ibid.* We held that the state prisoners could not seek such an injunction under § 1983 and instead had to proceed under 28 U. S. C. § 2254, the habeas statute for state prisoners. *Id.*, at 490, 500. In so holding, we explained that § 1983 is a "general" statute that broadly guarantees equitable and legal remedies for the deprivation of any federal right. *Id.*, at 489. Its breadth causes it to bump up against § 2254, which is "specific" in that it was "explicitly and historically designed to provide the means for a state prisoner to attack the validity of his confinement" and only after the "exhaustion of adequate state remedies." *Ibid.* We feared that privileging the general would cause it to drown the specific. We thus reasoned that Congress's "specific determination" that "habeas corpus is the appropriate remedy for state prisoners attacking the validity of the fact or length of their confinement" must "override the general terms of § 1983." *Id.*, at 490.

Page Proof Pending Publication

Unlike § 1983, § 3582(c)(1)(A) is not a "general" statute that protects all rights and provides for all sorts of civil remedies. Instead, it creates a *specific* mechanism for granting a sentence reduction in the criminal context. *Preiser*'s reasoning

is therefore inapposite, as it would be odd to conclude that Congress intended a statute specifically authorizing release from prison to impliedly limit another statute that authorizes the same. The better inference is that Congress meant for these two statutes to exist side by side and not to the exclusion of one another.[2]

Gonzalez is equally inapposite. There, we held that prisoners cannot use motions for "relief from a final judgment" under Federal Rule of Civil Procedure 60(b) to circumvent the statutory limitations on second-or-successive habeas applications. 545 U. S., at 528. But Rule 60(b), like § 1983, is a general mechanism for civil relief. It allows federal courts to "relieve a party . . . from a final judgment" for "any . . . reason that justifies relief." Fed. Rule Civ. Proc. 60(b)(6). It is a far cry from § 3582(c)(1)(A), which, like § 2255, specifically authorizes release from prison. Just like *Preiser*, then, *Gonzalez*'s interpretation of a general civil provision has nothing to say about § 3582(c)(1)(A)'s specific relief scheme and whether Congress meant for it to be cancelled out by an implicit habeas-review bar.

Pages From Restricted Publication

Instead of acknowledging the poor fit of *Preiser* and *Gonzalez*, the majority doubles down, insisting that these cases stand for "an anticircumvention principle." *Ante*, at 421, n. 3. That might well be a common thread. But the majority does

---

[2] *Preiser* also reflected basic principles that have no relevance here—namely, "[t]he strong considerations of comity that require giving a state court system that has convicted a defendant the first opportunity to correct its own errors." 411 U. S., at 492. Allowing the state prisoners in *Preiser* to proceed under 42 U. S. C. § 1983—which, unlike 28 U. S. C. § 2254, requires no exhaustion of state remedies—would have resulted in "unnecessary friction between the federal and state court systems." *Id.*, at 490. But federal (not state) prisoners bring compassionate-release motions. And those motions are usually heard by the same federal courts that oversaw their convictions, imposed their sentences, and considered any § 2255 applications. *Preiser*'s concern with creating friction between two autonomous judicial systems does not arise in the compassionate-release context.

not explain why the anticircumvention principle applies to § 3582(c)(1)(A)—a statute that, unlike § 1983 or Rule 60(b), specifically authorizes the release of prisoners under given circumstances. For the anticircumvention principle to be apposite, one (specific) statutory directive must be potentially undercut by another (broader) provision. But that does not happen here: Both § 2255 and § 3582(c)(1)(A) establish specific circumstances under which the release of a prisoner is authorized. So the circumvention concern is not implicated on these facts.

Put differently, the majority *assumes* that compassionate release operates as an end-run around habeas restrictions. But there is nothing in either statute that corroborates the majority's intuition that habeas restrictions take primacy over the "extraordinary and compelling reasons" justifying compassionate release.

C

Page Proof Pending Publication

Perhaps even more troubling than the lack of support for today's holding is the uncertainty this case will create moving forward. That uncertainty results, in part, from the majority's backwards reasoning: It starts with the premise that Fernandez is functionally attempting to use § 3582(c)(1)(A) to attack his conviction collaterally and, from there, concludes that § 2255 must prevent this sort of end-run around the strict process for habeas relief. But that reasoning rests on the unfounded assumption that Fernandez is essentially seeking to have his conviction vacated rather than his sentence shortened. Those are two completely different asks. And the majority's reasoning also merely assumes that they are incompatible.

Worse still, on its way to announcing that "[a] prisoner who collaterally attacks the validity of his conviction must proceed through" habeas only, the majority fails to define with any precision what it means for a prisoner to "collaterally attac[k] the validity of his conviction." *Ante*, at 415. Its inability to do so is understandable, since delineating the bounds of such "collateral attacks" is notoriously difficult.

Cf. W. Baude, J. Goldsmith, J. Manning, J. Pfander, & A. Tyler, Hart and Wechsler's The Federal Courts and the Federal System 1687 (8th ed. 2025) (Hart & Wechsler) (discussing the difficulty of determining when, under the *Preiser* line of cases, a successful § 1983 action necessarily implies "the invalidity of the plaintiff's conviction").[3]

This case illustrates why the new line the majority draws is a fuzzy one. The District Court did not question the legality of the jury's verdict or Fernandez's conviction. See 2022 WL 17039059, *4 (SDNY, Nov. 17, 2022). To the contrary, it found that *despite* the lawfulness of Fernandez's conviction, its lingering "concer[n]" as to his guilt was an "extraordinary and compelling" reason for a sentence reduction. *Ibid.* A prisoner who proceeds through § 2255, however, must show that his sentence was unlawful—specifically, that it was "imposed in violation of the Constitution or laws of the United States." § 2255(a). That is something Fernandez cannot definitively do, given this Court's expressed doubts about whether "a freestanding claim of actual innocence" suffices to establish the unlawfulness of a sentence. *McQuiggin* v. *Perkins*, 569 U. S. 383, 392 (2013).

Page Proof Pending Publication

So, how, exactly, does the District Court's "extraordinary and compelling" finding qualify as a collateral attack on Fernandez's conviction for § 2255 purposes, as the majority

[3] Seeming to acknowledge the difficulty of defining a "collateral attack" under *Preiser*, the majority shoos away this point by maintaining that such problems arise only when a prisoner seeks "relief other than a release from custody." *Ante*, at 428–429, n. 6. But context matters; before today, this Court had not applied the *Preiser* line of cases to a statute that specifically authorizes release from custody. Now that the majority has extended *Preiser* to such a statute, hard questions are sure to follow, including one of the questions at the core of this case: Why should *Preiser*'s logic apply to a prisoner who seeks compassionate release on a basis that is not cognizable in habeas? Cf. Hart & Wechsler 1689 (questioning whether a state prisoner who brings a constitutional claim under § 1983 can escape *Preiser* and its progeny "by arguing that a victory in a § 1983 action will not invalidate the prior conviction precisely *because* no court has jurisdiction" to entertain his claim under § 2254 (emphasis added)).

maintains? See *ante,* at 427. The District Court did not find, for instance, that Fernandez should be released from prison because his sentence or conviction was unconstitutional or otherwise unlawful. Rather, the District Court considered whether Fernandez might actually be innocent—something we have never recognized as a potential ground for habeas relief. See *McQuiggen*, 569 U. S., at 392. It is hard to see why this consideration actually creates the end-run around habeas the majority fears.[4]

One could easily imagine similar difficulties arising in other cases. Consider, for instance, a federal prisoner who files a § 2255 motion arguing that his conviction and sentence are unconstitutional because a chronic mental illness rendered him incompetent to plead guilty or stand trial. In resolving the § 2255 motion, the district court might reject as unreliable the evidence supporting the severity of the prisoner's condition. See, *e. g.*, *Cohn* v. *United States*, 2023 WL 4670839, *13 (NDNY, July 10, 2023) (rejecting § 2255 motion on these grounds). Under the majority's rule, would that prisoner be precluded from citing his mental condition in a subsequent § 3582(c)(1)(A) motion? Maybe. But that would certainly be an odd result, given the majority's suggestion that chronic illnesses are "heartland 'extraordinary and compelling reasons' that might warrant an early release from prison." *Ante,* at 426.

Page Proof Pending Publication

[4] In response, the majority offers only the *ipse dixit* that "[t]here is an obvious distinction between a prisoner who asserts that he should not have been convicted in the first place and one who asserts that his present circumstances warrant an exercise of compassion." *Ante*, at 428–429, n. 6. With the right framing, this "obvious" distinction falls apart: What about the prisoner who seeks compassion for the present circumstance of being incarcerated for a crime he did not commit? In any event, Fernandez is not arguing (and the District Court did not conclude) that he never should have been convicted. See 2022 WL 17039059, *4 (SDNY, Nov. 17, 2022) (observing that "jury verdicts, despite being legal, also may be unjust" and citing this observation as "the basis of [its] finding that . . . Fernandez ha[d] shown extraordinary and compelling circumstances for his release").

Thus, the line between a proper compassionate-release claim and a proper habeas claim could be difficult to draw moving forward. The majority ignores this problem rather than taking it as a clue that the habeas-based limitation it favors is an ill fit for the distinct compassionate-release evaluation.

III

For the reasons I have given, I think the majority is wrong to hold, as a categorical matter, that conviction-related concerns a prisoner may raise under § 2255 can *never* be grounds for granting a motion under § 3582(c)(1)(A). In my view, all facts and circumstances are eligible to be considered as grounds for granting a compassionate-release motion. Other than the rehabilitation restriction, see 28 U. S. C. § 994(t), the only statutory limit on the District Court's discretion is one of *degree*. So, if the proffered facts and circumstances (of whatever *type*) provide an "extraordinary and compelling reason" to reduce the prisoner's sentence (alone or in combination), the District Court may grant compassionate release.

Page Proof Pending Publication

I do not take a position as to whether Fernandez's case meets that threshold. The District Court thought so—it laid out the evidentiary gaps that caused it to have serious doubts about whether Fernandez was involved in the underlying crime at all. See 2022 WL 17039059, *4.[5] Also nota-

[5] In a nutshell, the District Court expressed concern that Patrick Darge—Fernandez's codefendant and the primary witness against him—falsely implicated Fernandez as his "back-up" shooter. See 2022 WL 17039059, *4. The District Court emphasized that Darge fled to the Dominican Republic with his brother immediately after the shooting, while Fernandez remained in the United States, living with his family and accruing no criminal record. *Ibid.* This suggested to the District Court that Darge may have lied to protect his brother (perhaps the true "back-up") and to secure a deal for himself. *Ibid.* The District Court observed several facts supporting this conclusion, including that Darge had lied to the Government about the shooting previously and that his testimony was inconsistent with the ballistics evidence. *Ibid.*

ble, the District Court based its § 3582(c)(1)(A) ruling on *both* its "disquiet" about Fernandez's potential innocence *and* the significant disparity between Fernandez's sentence and his codefendants' sentences. *Ibid.* But due to the categorical rule the Second Circuit employed, that court did not address whether the District Court erred in concluding that § 3582(c)(1)(A)'s "extraordinary and compelling reasons" threshold was satisfied on these facts. See 104 F. 4th 420, 429–433 (2024). I would vacate the judgment below and remand for the Second Circuit to make that assessment in the first instance.[6]

* * *

The Court's holding in this case reflects an unfortunate misunderstanding of the safety-valve mechanism Congress created in 1984 and broadened in 2018. Congress designed compassionate release as a tool for preserving a modicum of mercy in an otherwise harsh sentencing system. And nothing about the text or history of the compassionate-release

Page Proof Pending Publication

[6] Recognizing the lack of textual support for the majority's habeas-based rule, two Justices would affirm the Second Circuit's ruling on a different ground. In their view, "[a] motion for compassionate release cannot justify a reduced sentence if it relies solely on facts a court already considered in imposing the initial sentence, rather than any changed circumstances that developed after sentencing." *Ante,* at 431 (SOTOMAYOR, J., concurring in judgment). It is perhaps true that, in many (if not most) cases, a compassionate-release motion rehashing old arguments and evidence will not satisfy the "extraordinary and compelling" standard. But I see no basis in § 3582(c)(1)(A) for categorically barring relief in all cases where the defendant fails to identify changed circumstances. See Part I–A, *supra* (explaining that the words "extraordinary and compelling" speak to degree, not type).

In any event, the Second Circuit did not rely on any such changed-circumstances rule in reversing the District Court's grant of compassionate release, nor did the parties address it in their briefing. As such, even if the changed-circumstances rule were correct, the proper course would be to vacate the decision below for the Second Circuit to apply the rule in the first instance. See *Cutter* v. *Wilkinson*, 544 U. S. 709, 718, n. 7 (2005) ("[W]e are a court of review, not of first view").

provision suggests that Congress meant for this discretionary second-look opportunity to be cabined in the way the majority suggests. In other words, Congress gave prisoners an equitable "out" for the extraordinary and compelling circumstance in which they might otherwise be stuck serving an unjust sentence. Ironically, then, the escape hatch the majority decries is actually § 3582(c)(1)(A)'s core mission.

Deploying its own concerns about habeas end-runs, the majority misses all this; it now drastically limits the availability of the compassionate-release tool Congress crafted. And it does so without adequately identifying any true conflict with § 2255. The majority's atextual and unsupported limitation on a district court's sentencing discretion is an unnecessary rewriting of the statute Congress wrote and an unwarranted revision of the compassionate-release scheme Congress intended to establish.

Page Proof Pending Publication

Reporter's Note

The attached opinion has been revised to reflect the usual publication and citation style of the United States Reports. The revised pagination makes available the official United States Reports citation in advance of publication. The syllabus has been prepared by the Reporter of Decisions for the convenience of the reader and constitutes no part of the opinion of the Court. A list of counsel who argued or filed briefs in this case, and who were members of the bar of this Court at the time this case was argued, has been inserted following the syllabus. Other revisions may include adjustments to formatting, captions, citation form, and any errant punctuation. The following additional edits were made:

Page Proof Pending Publication

None